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IN THE SUPREME COURT OF IOWA
Supreme Court No. 24-1108
Linn County No. FECR149137

STATE OF IOWA,
Plaintiff–Appellee,

vs.

DUVAL TREMONT WALKER, JR.,
Defendant–Appellant.

APPEAL FROM THE IOWA DISTRICT COURT
FOR LINN COUNTY
THE HONORABLE KEVIN MCKEEVER, JUDGE

APPLICATION FOR FURTHER REVIEW

(Iowa Court of Appeals Decision: February 11, 2026)

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TABLE OF CONTENTS

QUESTION PRESENTED FOR FURTHER REVIEW 3

STATEMENT SUPPORTING FURTHER REVIEW 4

NATURE OF THE CASE 5

STATEMENT OF THE FACTS 6

ARGUMENT 8

I. Rule 2.18(5)(o) requires actual bias, which is absent here. . 8

A. *State v. Jonas* 8

B. Iowa Rule of Criminal Procedure 2.18(5)(o) and "actual bias" 12

C. The panel majority erred in applying the text of rule 2.8(15)(o) to a juror who expressed no actual bias and agreed to decide the case on the evidence only 15

CONCLUSION 24

CERTIFICATE OF COMPLIANCE 26

QUESTION PRESENTED FOR FURTHER REVIEW

A prospective juror learns information potentially screened off from the jury by a preliminary ruling on a motion in limine and unequivocally states they can be fair and impartial if chosen to serve on the jury. Does that situation present "circumstances [that] indicate the juror would have an actual bias for or against a party," for purposes of recently enacted Iowa Rule of Criminal Procedure 2.18(5)(o)?

STATEMENT SUPPORTING FURTHER REVIEW

Duval Walker, Jr., was charged with murder in the first degree, going armed with intent, and being a felon in possession of a firearm, following a St. Patrick's Day altercation at a Cedar Rapids bar. D0013, Trial Information at 1–2 (5/3/2023). On the first day of trial, before jury selection concluded, Walker pled guilty to the felon-in-possession charge. D0207, Waiver of Rights and Plea of Guilty at 1–8 (3/5/2024). That news was reported by a local outlet, and a prospective juror, R.L., saw a headline that Walker pled guilty to the charge. D0325, Trial Tr., vol. 2 (3/6/2024), at 37:5–13.

Walker moved to strike R.L. for cause. *Id.* at 41:16–42:10. Walker noted that a ruling on a motion in limine would have screened his status as a felon from the jury. *Id.* Because R.L. told the court he could be fair and impartial and that Walker could be guilty of one crime without being guilty of another, the court denied the motion. *Id.* at 44:4–45:1. Walker then used the procedure outlined in *State v. Jonas*, 904 N.W.2d 566, 583 (Iowa 2017), to strike R.L. and secure a presumption of prejudice. *See id.* at 204:1–205:24. The R.L.-less jury convicted Walker of the remaining two counts, and Walker appealed. *See* D0307, Order of Disposition at 1–4 (7/5/2024); D0309, Notice of Appeal at 1 (7/8/2024).

On February 11, 2026, a two-judge majority of the Iowa Court of Appeals' panel reversed and remanded for retrial. *State v. Walker*, No. 24-1108, 2026 WL 380007 (Iowa Ct. App. Feb. 11, 2026) (hereafter "Slip.Op.").

That conclusion turns on an interpretation of a recently enacted rule. Iowa Rule of Criminal Procedure 2.18(5)(o) was introduced in the wake of *Jonas*. *See* Slip.Op. at 5. Subsection (o) permits challenges for cause "[w]here the circumstances indicate the juror would have an actual bias for or against a party." Iowa R. Crim. P. 2.18(5)(o). This case is the first to examine the rule in depth, and it produced three opinions from three judges. *See* Slip.Op. at 2–24; *cf., e.g.*, *State v. Gregory*, No. 23-1816, 2025 WL 2793617, at *3 (Iowa Ct. App. Oct. 1, 2025) (citing rule).

When three jurists interpreting a rule for the first time reach three different conclusions, that suggests the rule's lack of clarity. The State seeks further review for both clarity and correction. *See* Iowa R. App. P. 6.1103(1)(b)(2), (3), (4). This Court should grant review, vacate the court of appeals' opinion, and affirm the district court.

NATURE OF THE CASE

Duval Walker was charged with first-degree murder, going armed with intent, and being a felon in possession of a firearm. D0013 at 1–2. He pleaded guilty to the felon-in-possession charge. D0207 at 1–8. A jury

convicted him of the other two charges. D0307 at 1–4. On appeal, he challenged the court's rulings on two motions to strike jurors for cause and the court's refusal to instruct on the doctrine of imperfect self-defense. *See* Appellant's Br. at 12–54.

Two members of the three-judge panel agreed with Walker about one of the jurors (R.L.) and reversed on that basis. Slip.Op. at 2–12. In a special concurrence, one of those judges emphasized the "risk of prejudice" created by the district court's ruling on R.L. Slip.Op. at 14 (Sandy, J., specially concurring). One judge dissented and would have affirmed the district court as to both jurors and the instructional issue. Slip.Op. at 17–24 (Badding, J., dissenting). The State seeks further review.

STATEMENT OF THE FACTS

On St. Patrick's Day, 2023, Duval Walker was at a Cedar Rapids bar, Cocktails. D0329, Trial Tr., vol. 3 (3/7/2024), at 96:9–20. There he encountered Cameron Barnes. *See id.* at 66:17–67:18 (identifying relevant parties in Exhibit 6); D0282, Exh. 6, Pool Hall Video at 11:03:40 p.m (3/13/2024).[1]

[1] Each video exhibit contains two videos, each of which has an unwieldy file name. For ease of readability, the State wishes to avoid citing such unwieldy names, and it additionally fears that citing to internal time stamps across two videos per exhibit invites potential confusion. To avoid these

Barnes and Walker ran in the same circles. A year prior, Barnes had antagonized Walker by flashing a gun at him and his then-girlfriend. *See* D0332, Trial Tr., vol. 5 (3/11/2024), at 176:6–179:25. At Cocktails, Barnes made no effort to speak to Walker. *See* D0323, Trial Tr., vol. 4 (3/8/2024), at 98:3–102:13 (narrating Barnes's actions after entering the bar). But Walker confronted Barnes by the bar's pool tables. D0282 at 11:03:40 p.m.–11:04:19 p.m. Barnes's friend, Demarrio Gibson, stood nearby. *Id.* (in green "Champion" sweatshirt); D0329 at 66:20–23.

After verbal confrontation apparently failed to achieve his aims, Walker swung at Barnes. D0282 at 11:04:20 p.m. A fight broke out. *Id.* Gibson punched Walker and wielded a pool cue. *Id.* at 11:04:20 p.m.–11:04:34 p.m. A security guard, Marcus Johnson, stepped in to break up the fight. D0329 at 100:14–25. He grabbed Barnes in a hold. *Id.* As he was doing so, though, he heard someone else exclaim, "He has a gun!" *Id.* at 120:13–25. Walker had retrieved a gun that had fallen to the floor behind a Dakota "DK" Moser, who was assisting Walker in the fight. D0282 at 11:04:41 p.m.–11:04:43 p.m.; D0323 at 104:17–106:8; D0332 at 13:20–14:9, 111:15–112:5, 161:12–162:11; D0229, Exh. 29, Photo at 1 (3/11/2024);

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issues, the State will cite to the actual time, which is displayed in the upper right corner of each video.

D0230, Exh. 30, Photo at 1 (3/11/2024). Johnson got out of the way, and in that moment, Walker charged Barnes and shot him. *See* D0285 at 11:04:50 p.m.–11:04:56 p.m. Barnes was unarmed that night at the bar. D0329 at 72:7–15, 124:5–10, 199:22–24; D0323 at 18:22–19:3; D0332 at 161:9–16. Gibson saw Walker "kill[] [his] friend." D0329 at 82:16–18.

Walker, in a series of phone calls, announced what he had done. *See generally* D0286, Exh. 19A (3/13/2024). Law enforcement officers located and arrested him. *See* D0323 at 81:4–10. These charges followed. On the first day of trial, Walker pled guilty to the possession charge. D0207 at 1–8.

ARGUMENT

I. Rule 2.18(5)(o) requires actual bias, which is absent here.

A. *State v. Jonas*

In 2017, this Court decided *State v. Jonas*, 904 N.W.2d 566 (Iowa 2017), a first-degree murder case "with sexual overtones." 904 N.W.2d at 568. The defendant in that case, Stephen Jonas, was a gay man. *Id.* at 567.

> A written questionnaire asked each potential juror the following question: "The defendant in this case is gay. Would this fact in any way influence your ability to be fair and impartial if you were selected to be a juror in this case?" A potential juror put an X next to "yes" and, in the place provided for an explanation, wrote "I would try to keep an open mind, but I would have a hard time overlooking it." During voir dire, Jonas's defense attorney asked the potential juror about the potential juror's affirmative answer to the question. The defense attorney asked, about Jonas's

> sexuality, "You agree that fact is going to affect your ability to be fair?" The potential juror replied, "Somewhere in the back of my mind something would come up. I just—I'm just being honest with you." The defense attorney pressed further, "So is it fair to say that you are not going to be able to give Mr. Jonas a fair trial because of that?" The potential juror answered,
>
> I would say that young man would probably do better without me on the jury, just to be honest with you. I would try to be fair. I'm 50 years old and I would try to be fair, but he probably would have better jury selection than myself.

Id. at 569. Under further questioning, the prospective juror gave similar responses but maintained he would follow the court's instructions. *Id.* at 569–70.

Jonas's attorney moved to dismiss the juror for cause, arguing, "There is no question that this juror cannot be fair and impartial to Mr. Jonas because he is gay." *Id.* at 570. The court denied the motion:

> Well, my problem is he has said that he's going to have it in the back of his mind and that the defendant would be better off not having him as a juror. After he said that, he still continues to express the opinion that he could be fair and unbiased and be able to try a fair case.
>
> And I just don't think that the record is there to strike him for cause at this point. So I'm going to allow [the juror] to stay on the panel.

Id. Jonas later used a peremptory strike on the juror. *Id.*

Jonas was convicted of second-degree murder. *Id.* On appeal, the court of appeals affirmed. *Id.* Jonas applied for further review, which this Court granted. *Id.*

Jonas raised a challenge pursuant to Iowa Rule of Criminal Procedure 2.18(5)(k), which permits challenges for cause where the prospective juror has "formed or expressed such an opinion as to the guilt or innocence of the defendant as would prevent the juror from rendering a true verdict upon the evidence submitted on the trial." *Id.* at 571; Iowa R. Crim. P. 2.18(5)(k). This Court framed the relevant issue as

> whether the district court abused its discretion under rule 2.18(5)(k) in failing to discharge the potential juror for cause when the potential juror, in a case involving a gay defendant in a sexual context, expressed bias against gay people in a jury questionnaire and affirmatively told the court in voir dire he would follow the court's instructions, but further advised the court that bias would remain in the back of his mind.

904 N.W.2d at 571.

After surveying relevant precedent, this Court determined the district court abused its discretion. *Id.* at 575. In doing so, it "rel[ied] primarily on the potential juror's expression of *actual bias* against gay people in the original questionnaire and during voir dire." *Id.* (emphasis added). The portion of the opinion focused on this issue concluded:

> Where a potential juror initially repeatedly expresses actual bias against the defendant based on race, ethnicity, sex, or sexual orientation, both in a pretrial questionnaire and in voir dire, we do not believe the district court can rehabilitate the potential juror through persistent questioning regarding whether the juror would follow instructions from the court. Our conclusion in this case is reinforced by the fact that even after the extensive colloquy with the court, the potential juror still continued to express his own concerns about his potential bias and ability to be fair and impartial. Under these circumstances, when the defendant moved to disqualify the potential juror for cause after the conclusion of the colloquy, the district court erred in refusing to disqualify him. We now turn to the question of prejudice.

Id. (citation omitted). Because of its determination on the prejudice issue, however, the Court ultimately affirmed. *Id.* at 584.

Justice Waterman wrote a special concurrence, joined by two other justices. *See id.* (Waterman, J., concurring specially). Justice Waterman "disagree[d] with the majority's conclusion that the district court abused its discretion." *Id.* In his view, the district court's

> ruling [seemed] entirely defensible. The test on a for-cause challenge should not be whether a prospective juror has something "in the back" of their mind or whether one of the parties would "do better" with a different juror. Those are precisely the kinds of answers that ought to trigger the use of a peremptory strike, but they are not enough to mandate that a juror be excused for cause. All of us walk around with our own notions, biases, and experiences and, in any given case, would make a better juror for one side

> rather than the other. That is what peremptory strikes are for.

Id. at 585.

B. Iowa Rule of Criminal Procedure 2.18(5)(o) and "actual bias"

In 2022, the Iowa Rules of Criminal Procedure added subsection (o) to Rule 2.18(5)'s list of permissible challenges for cause. Slip.Op. at 5 n.1 (citing *Supreme Court Approves Revised Rules of Criminal Procedure*, Iowa Judicial Branch: News Releases (Feb. 1, 2022), https://perma.cc/W6ZF-5S5K). The judicial branch's criminal procedure task force cited *Jonas* as the explanation behind the rule. *See id.* This reflects an understanding that "[i]t was the expression of actual bias that concerned the court in *Jonas*." Slip.Op. at 17 (Badding, J, dissenting). The rule applies "[w]here the circumstances indicate the juror would have an actual bias for or against a party." Iowa R. Crim. P. 2.18(5)(o).

"Bias may be actual or implied." *Treesh v. Bagley*, 612 F.3d 424, 437 (6th Cir. 2010). "Actual juror bias occurs when the evidence shows that a juror, in fact, is unable to lay aside prejudices and judge a case fairly on the merits." Slip.Op. at 6 (quoting *State v. Webster*, 865 N.W.2d 223, 236 (Iowa 2015)); *accord Treesh*, 612 F.3d at 437 ("Actual bias is 'bias in fact'");

Carratelli v. State, 961 So. 2d 312, 324 (Fla. 2007) ("[A]ctual bias means bias-in-fact that would prevent service as an impartial juror.").

There is, potentially, a tension in Rule 2.18(5)(o). On the one hand, establishing a juror's actual bias is difficult. *Webster*, 865 N.W.2d at 237. On the other, one could read "circumstances indicate" to require a minimal showing of proof. *See* Slip.Op. at 9–10 (finding actual bias from R.L.'s knowledge of guilty plea). These are divergent standards, with large ramifications. Facts that, in the past, have garnered little attention could now be "circumstances indicat[ing]" actual bias. *See, e.g.*, *State v. Perry*, No. 23-1062, 2024 WL 2839215, at *5 (Iowa Ct. App. June 5, 2024) (challenge based on juror's marriage to a law enforcement officer); *State v. Bol*, No. 21-1893, 2024 WL 1549259, at *8 (Iowa Ct. App. Apr. 10, 2024) (juror's single expression of empathy for victim); *State v. Silva*, No. 17-0802, 2018 WL 1858294, at *2 (Iowa Ct. App. Apr. 18, 2018) (jurors seen shaking hands with defendant's family members at church); *see also State v. Rogers*, 168 P.3d 669, 675 (Mont. 2007) (considering ability of parent to serve as juror in trial involving allegations of sexual assault of a child). This would establish an "impossible standard." *Irvin v. Dowd*, 366 U.S. 717, 723 (1961) ("To hold that the mere existence of any preconceived notion as to the guilt or innocence of an accused, without more, is sufficient to rebut the

presumption of a prospective juror's impartiality would be to establish an impossible standard."). "Circumstances indicate" should require more.

"Actual bias" requires more than speculation. *See Dennis v. United States*, 339 U.S. 162, 168 (1950) ("The way is open in every case to raise a contention of bias from the realm of speculation to the realm of fact."). It typically requires an express admission of bias or intentional wrongdoing. *See, e.g.*, *Seyler v. Burlington N. Santa Fe Corp.*, 121 F. Supp. 2d 1352, 1362 (D. Kan. 2000) (noting "juror's own admission of bias" may show actual bias); *Crail Creek Assocs., LLC v. Olson*, 187 P.3d 667, 670–72 (Mont. 2008) (finding "state of mind evincing bias" where juror expressed favoritism for both contractors in general and this particular contractor's lawyer, who employed juror's friend); *State v. Montealvo*, No. 19-1788, 2021 WL 590110, at *3 (Iowa Ct. App. Feb. 3, 2021) (discussing juror who deliberately lied during voir dire); *Gosling v. Commonwealth*, 376 S.E.2d 541, 544 (Va. Ct. App. 1989) (finding "giving unqualified credence to the testimony of a law enforcement officer based solely on the officer's official status constitutes impermissible bias"). Mere knowledge, however, has typically been insufficient. *See State v. Sallis*, 262 N.W.2d 240, 246 (Iowa 1978); *Silva*, 2018 WL 1858294, at *2; *cf. United States v. Gilsenan*, 949

F.2d 90, 96 (3d Cir. 1991) ("[W]e are concerned with the information's effect on the verdict rather than the information in the abstract.").

C. The panel majority erred in applying the text of rule 2.8(15)(o) to a juror who expressed no actual bias and agreed to decide the case on the evidence only.

Here, prospective juror R.L. learned that Walker pleaded guilty to being a felon in possession of a firearm. Slip.Op. at 6–7. When questioned, he said he did not have an opinion on Walker's guilt on the other charges because "one can be true without the other." *Id.* at 7. He said he would be able to set aside what he had learned and decide the case based solely on the evidence in the courtroom. *Id.* Walker moved to strike R.L. for cause. *Id.* at 8. The district court denied the motion, noting that "he seemed to be wanting to just evaluate this case based on what this case was about and not on what—anything that may have been pled to in the past." *Id.* The court continued:

> He didn't seem to think there was a relationship between the two, so I don't think that there was—I mean, based on his answers, there doesn't appear to be any of the kind of prejudice that I was hoping to avoid by excluding the evidence because we can't—you know, once the once this is presented to the jurors, we don't know whether it will or won't affect them.
>
> Here in jury selection, we have the benefit of asking them what people think. Some people come in here and tell us they've made up their minds and we've

> thrown them out. Other people told us they'll be open-minded and think about them, and we've kept them.
>
> So I think [R.L.] said he would be fair, and I have no reason to doubt that based on his own statements.

Id. The court of appeals reversed. *See id.* at 12.

In doing so, the two-judge majority found that "[j]urors may be disqualified even if they have not '*formed or expressed* an opinion as to the guilt or innocence of the defendant as would prevent the juror from rendering a true verdict upon the evidence submitted on the trial.'" *Id.* at 9 (emphasis in original) (quoting Iowa R. Crim. P. 2.18(5)(k)). The majority contrasted subsection (k)'s standard with that of subsection (o): "Paragraph (o) requires the district court to decide whether 'the *circumstances indicate* the juror would have an actual bias' against a party." *Id.* (emphasis in original) (quoting Iowa R. Crim. P. 2.18(5)(o)). The majority continued:

> Here, the court failed to consider whether, independent of R.L.'s assurances that he would not be swayed by his exposure to the damaging information and would keep it secret from other jurors, the circumstances justified denying the motion to strike.
>
> Did the circumstances indicate actual bias here? During jury selection, a news account reached R.L. revealing that Walker was a felon and pleaded guilty to being a felon in possession of a firearm for his conduct in this incident. The district court had excluded that same information from the jury because it posed too great a risk of unfair prejudice.

> From that ruling on Walker's motion in limine, we may infer that "the nature of the improper information" was "sufficiently prejudicial to deny [Walker] a fair trial," given the charges yet to be tried and Walker's justification defense.

Id. at 9–10 (citations omitted).

The majority erred in multiple respects. First, it misinterpreted the rule. It seems that the majority views subsection (o) as a variant of subsection (k) requiring a lesser showing of proof aimed at the same ill. *See id.* at 6 (defining "actual juror bias" to include situations where jurors are "unable to lay aside prejudices and judge a case fairly on the merits"), 9 (emphasizing, and contrasting, "formed and expressed" with "circumstances indicate"). To the extent that is the opinion of the court, it cannot be correct, because it renders the subsections redundant. *See In re J.C.*, 857 N.W.2d 495, 504 (Iowa 2014) ("We generally interpret statutes to avoid redundancy.").

The better interpretation is that "an actual bias" is something different from "an opinion as to the guilt or innocence of the defendant as would prevent the juror from rendering a true verdict upon the evidence submitted on the trial." *Compare* Iowa R. Crim. P. 2.18(5)(o), *with id.* 2.18(5)(k); *see also* Slip.Op. at 17–18 (Badding, J., dissenting). This interpretation removes "actual bias" from the realm of case-specific

opinions on guilt or innocence, consistent with this Court's opinion in *Jonas*: "Where a potential juror initially repeatedly expresses actual bias against the defendant based on race, ethnicity, sex, or sexual orientation . . . we do not believe the district court can rehabilitate the potential juror through persistent questioning regarding whether the juror would follow instructions from the court." 904 N.W.2d at 575. "Actual bias" is something more pernicious or deep-seated, not readily subject to judicial rehabilitation. *See* Iowa R. Crim. P. 2.18(6) (providing examples of biases engendering "actual bias"); *Powell v. State*, No. 18-0542, 2019 WL 2524264, at *8 n.2 (Iowa Ct. App. June 19, 2019); *Dixon v. State*, No. 16-2195, 2018 WL 3471833, at *7 (Iowa Ct. App. July 18, 2018). This interpretation also addresses the misgivings expressed by *Jonas*'s special concurrence about the statutory basis for *Jonas*'s abuse-of-discretion finding. *See Jonas*, 904 N.W.2d at 584 ("Nothing [the prospective juror] said showed he was unable to decide the case based on the evidence and the court's instructions.").

Second, the majority found actual bias from what is mere knowledge. The circumstances here do not indicate actual bias. R.L. learned that Walker pleaded guilty to being a felon in possession of a firearm. But he evinced no bias on that basis. He stated, correctly, that "one can be true

without the other." Slip.Op. at 7. He said he could decide the case based on the evidence in front of him. *Id.* Nothing in the record indicates he harbored a bias for or against either party. *See id.* R.L. could have been an ideal juror—his answers demonstrate a willingness to be fair and impartial. The district court, evaluating the totality of the circumstances after an in-camera examination, found as much. *See* Slip.Op. at 8 (quoting district court); D0325 at 43:13–21; *cf. Gov't of Virgin Islands v. Dowling*, 814 F.2d 134, 137 (3d Cir. 1987) (expressing preference for individualized examination). It observed R.L. firsthand, and its conclusions merit deference. *See Skilling v. United States*, 561 U.S. 358, 386–87 (2010); *Jonas*, 904 N.W.2d at 585–86 (Waterman, J., concurring specially) (collecting cases); *State v. Boat*, No. 21-0934, 2024 WL 466562, at *5 (Iowa Ct. App. Feb. 7, 2024); *State v. Williams*, No. 21-1772, 2022 WL 16985147, at *4 (Iowa Ct. App. Nov. 17, 2022); *see also Freedman v. Kaiser Foundation Health Plan of Colo.*, 849 P.2d 811, 814 (Colo. App. 1992) ("[T]his issue is a factual determination and is entrusted to the sound discretion of the trial court.").

Because actual bias is absent here, the district court properly considered the juror's reassurances. In *Dyer v. Calderon*, 151 F.3d 970, 984 (9th Cir. 1998), "the magnitude of [a juror's] lies and her remarkable

display of insouciance" led to a presumption of bias. In *State v. Neuendorf*, 509 N.W.2d 743, 746 (Iowa 1993), the relevant juror believed one co-defendant "probably was equally as guilty" as a previously convicted co-defendant. Those jurors' protestations that they could remain impartial were rejected because, one might say, the preponderance of circumstances indicated otherwise. But those cases do not stand for the proposition that a trial court must evaluate the circumstances "independent of [such] assurances." Slip.Op. at 9. Presumably, such assurances go to this very question. *See Seyler*, 121 F. Supp. 2d at 1362.

Third, the court of appeals erred in its consideration of the motion in limine: "The district court had excluded that same information from the jury because it posed too great a risk of unfair prejudice." Slip.Op. at 10. There *is* evidence the district court was considering excluding this information on that basis. *Id.* at 8 ("I mean, based on his answers, there doesn't appear to be any of the kind of prejudice that I was hoping to avoid by excluding the evidence . . . ."). But, technically, the court excluded the information because of the plea agreement and the parties' intent to file a stipulation informing the jury that Walker "was engaged in illegal activity at the time of the shooting." *See* D0324, Trial Tr., vol. 1 (3/5/2024), at 24:1–7; D0332, Trial Tr., vol. 5 (3/11/2024), at 164:7–165:14; D0276, Stipulation at

1 (3/13/2024). Before the parties filed that stipulation, on day five of trial, whether the State would present evidence establishing Walker's status as a felon was a live question. *See* D0332 at 87:15–21, 90:17–91:9. The court indicated its intent to permit the State to introduce that evidence, its preliminary ruling on the motion in limine notwithstanding. *See id.* at 87:15–21; *see also State v. Thoren*, 970 N.W.2d 611, 620–21 (Iowa 2022) (noting preliminary nature of limine rulings).

Thus, the court of appeals' bias premise—"[f]rom that ruling on Walker's motion in limine, we may infer that the nature of the improper information was sufficiently prejudicial to deny Walker a fair trial, given the charges yet to be tried and Walker's justification defense"—is faulty. Slip.Op. at 10 (internal marks omitted); *see also id.* at 15 (Sandy, J., concurring specially) (assuming a "prejudice" that could not be "neutralized"). Had the parties not entered their stipulation, the entire jury would have been privy to this "improper information," because the district court did not truly believe knowing it "posed too great a risk of unfair prejudice." Slip.Op. at 10; D0332 at 87:15–21; D0325 at 43:13–21; *see also* Slip.Op. at 13 (Sandy, J., concurring specially) (referring to "information the court itself has deemed too prejudicial for any juror to possess.").

Juries often learn about prior convictions. *See, e.g.*, Iowa Code § 724.26 (providing elements of "felon in possession of a firearm," including prior felony). That information is not, per se, improper. *See* Slip.Op. at 18–19 (Badding, J., dissenting) (citing *Murphy v. Florida*, 421 U.S. 794, 799 (1975); *State v. Owens*, 635 N.W.2d 478, 482 (Iowa 2001); *State v. Simmons*, 454 N.W.2d 866, 868 (Iowa 1990); *State v. Winters*, No. 19-2130, 2021 WL 610204, at *6–7 (Iowa Ct. App. Feb. 17, 2021)). Ordinarily, courts do not hold it implants actual bias. *Cf.* Slip.Op. at 1.

Additionally, while the special concurrence believes "no instruction and no assurance of good faith can" undo the harm of letting R.L. serve on this jury, Slip.Op. at 15, the State notes that cautionary instructions are routinely used when jurors learn of an inadmissible criminal history. *See State v. Plain*, 898 N.W.2d 801, 815 (Iowa 2017) (discussing use of cautionary instruction). "Cautionary instructions are sufficient to mitigate the prejudicial impact of inadmissible evidence in all but the most extreme cases." *Id.* (internal marks omitted). Iowa courts trust jurors to follow those instructions. *See Trane v. State*, 16 N.W.3d 683, 695 (Iowa 2025). And the State notes the jury in this case was instructed to decide the case based only on the evidence presented. *See* D0278, Jury Instructions at 8–11 (Nos. 7–10) (3/13/2024).

Finally, the special concurrence's view that unequivocal denials of actual bias are not trustworthy compounds the majority's error. *See* Slip.Op. at 15 n.2 ("Self-assessments of one's own impartiality are often overly optimistic."). Taken together, the majority and special concurrence could be read to instruct district courts that learning potentially prejudicial information automatically "implant[s]" actual bias into a juror's mind, and unequivocally denying such bias only serves as evidence of the juror's lack of self-awareness or should not factor into the district court's evaluation of the circumstances. *See* Slip.Op. at 1, 9, 15 n.2. Jurors may be overly optimistic regarding their impartiality, but that optimism (or lack thereof) must be determined case-by-case. An appellate court's belief that "the best lack all conviction, while the worst are full of passionate intensity" is a center that cannot hold for district courts trying to guide jury selection. *See* William Butler Yeats, "The Second Coming," *available at* https://www.poetryfoundation.org/poems/43290/the-second-coming; *cf. Simmons*, 454 N.W.2d at 868 (finding "reservation about impartiality" insufficient to disqualify a juror for cause). Such a rule threatens to disenfranchise the unbiased—the very jurors needed on juries. It also places a heavy burden on rural counties, who will struggle to find satisfactory jury pools. The panel majority and special concurrence misinterpret the rule

and place an untenable burden on district courts across the State. This Court should vacate the panel, and affirm the district court's correct application of rule 2.18(5)(o) requiring "actual bias."

CONCLUSION

The two-judge majority in this case emphasized "circumstances" to the exclusion of "actual" bias, diverting from the rule's text and context. The majority found actual bias from what is, properly understood, mere knowledge. The majority misunderstood the state of play vis-à-vis the motion in limine and thereby converted information that was going to be before the whole jury into tainted knowledge necessitating removal for cause. And in all this, the majority substituted its views for those of the district court, which was in the better position to assess the juror's demeanor and credibility and the court's own views on the motion in limine.

The State asks this Court to grant further review, vacate the court of appeals' decision, and affirm Walker's convictions.

Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

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